

25VECV07301 25VECV07301

County: los-angeles

Division: Civil Law and Motion

Department: W

Hearing date: 2026-09-09

Motion: MOVING DEFENDANT PROVIDENCE HOLY CROSS MEDICAL CENTER'S MOTION FOR SUMMARY JUDGMENT OR IN THE ALTERNATIVE SUMMARY ADJUDICATION

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Case Number: 25VECV07301 Hearing Date: September 9, 2026 Dept: W

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

ANTHONY SANCHEZ,

Plaintiffs,

vs.

PROVIDENCE HOLY CROSS MEDICAL

CENTER; CORRINE KVAMME, M.D.;

EVAN VALLE, M.D.; RAMIN

GANJIANPOUR, M.D.; AZMI ATIYA,

M.D.; DONALD DESANTO II, M.D.; NEIL

SARDESAI, M.D.; AND DOES 1 through

100, inclusive,

Defendants.

CASE NO: 25VECV07301

[TENTATIVE] ORDER RE:

MOVING DEFENDANT PROVIDENCE HOLY CROSS MEDICAL CENTER'S MOTION FOR SUMMARY JUDGMENT OR IN THE ALTERNATIVE SUMMARY ADJUDICATION

Dept. W

8:30 a.m.

September 9, 2026

[TENTATIVE] ORDER: The Court DENIES Moving Defendant's Motion for Summary Judgment.

Background

This is a medical malpractice case. On October 12, 2022, Plaintiff Anthony Sanchez was severely injured when his girlfriend drove her car into him, pinning his legs against a second, stationary vehicle. Plaintiff was admitted to Moving Defendant Providence Holy Cross Medical Center for treatment for his injuries. Plaintiff was treated by multiple doctors, including Non-Moving Defendant Ramin Ganjianpour.

Plaintiff underwent multiple separate surgeries during his admission to Providence Holy Cross. First, on October 13, 2022, doctors performed a femoral bypass graft on Plaintiff's left knee in an attempt to restore blood flow to Plaintiff's foot. On October 18, 2022, doctors once again operated on Plaintiff's left leg. Then, on October 22, 2022, doctors "revascularized" Plaintiff's left leg, as it was still not receiving enough blood flow. Finally, on October 23, 2022, doctors performed a vascular bypass surgery on Plaintiff's left leg. Unfortunately, the blood flow to Plaintiff's leg was not restored. As a result, it had to be amputated. Moving Defendant Valle was present for multiple operations on Plaintiff, including his initial admission to the emergency room.

On January 2, 2024, Plaintiff brought suit against Moving Defendant Providence Holy Cross Medical Center, and six other doctors who treated him. Plaintiff alleges a single cause of action for professional negligence.

Now, Moving Defendant Providence Holy Cross Medical Center moves for summary judgment as to this claim of professional negligence.

Discussion

Moving Defendant Providence Holy Cross Medical Center moves for summary judgment, or in the alternative, summary adjudication as to this claim of professional negligence. (MSJ, pp. 7:10-8:10.)

In analyzing a motion for summary judgment, courts must, 1) determine whether the moving party has negated the opponent's claims; and 2) determine whether the opposition has demonstrated the existence of a triable, material factual issue." (Hinesley v. Oakshade Town Center (2005) 135 Cal.App.4th 289, 294.) Thus, summary judgment is granted when, after the Court's consideration of the evidence set forth in the papers and all reasonable inferences accordingly, no triable issues of fact exist, and the moving party is entitled to judgment as a matter of law. (CCP § 437(c); Villa v. McFarren(1995)

i) Moving Defendant's Initial Burden

Moving Defendant makes three arguments in an attempt to rebut Plaintiff's claim of medical malpractice. First, Moving Defendant argues that there is no dispute of fact as to whether the treatment rendered by their nurses or employees fell below the standard of care. (MSJ, pp. 19:27-20:6.) Second, Moving Defendant argues there is no dispute of fact as to whether their nurses or employees caused Plaintiff's injuries. (Id. p. 22:1-9.) Third, Moving Defendant argues that they cannot be held liable for the actions of the doctors who treated Plaintiff because these doctors were all independent contractors. (Id. pp. 22:19-23:4.)

a) Standard of Care and Causation

In support of these first two arguments, Moving Defendant provides the declaration of Alexis Chaudron, a registered nurse, and expert on the topic of the relevant standard of care for hospital staff in the state of California. (Chaudron Decl.) When a plaintiff alleges professional negligence, whereby the defendant is accused of failing to adhere to accepted standards of practice, the issues of standard of care and causation may be established only by qualified expert testimony. (*Stevenson v. Kaiser Foundation Hosp.* (1962) 203 Cal.App.3d 631 [emphasis added].) This is a professional negligence case. (Compl. p. 1.) Therefore, *Stevenson* applies.

Here, Moving Defendant's expert establishes her credibility as an expert on this subject, and concludes that, to a reasonable degree of medical probability, Moving Defendant's staff both complied with the relevant standard of care, and did not cause Plaintiff's injuries. (Chaudron Decl. ¶¶ 44, 45.)

Notably, Plaintiff does not dispute this argument in his Opposition. Plaintiff states that, "Plaintiff does not contend that the nurses or non-physicians were negligent. Rather, as alleged in the Complaint, Plaintiff's theory of liability against the hospital is based on the negligence of its physician-agents, including Dr. Ramin Ganjianpour." (Opp. p. 1:21-24.) Given that Plaintiff has conceded the issue of Moving Defendant's nurses and employees, the outcome of this motion rests entirely on Moving Defendant's independent contractor argument.

b) Independent Contractor Liability

Next, Moving Defendant argues that they cannot be held liable for the actions of the doctors who treated Plaintiff because these doctors were all independent contractors. (Id. pp. 22:19-23:4.) In support of this third argument, Moving Defendant provides the declaration of Sonia Ramos. Ms. Ramos works for Moving Defendant as the Senior Manager for Medical Staff Services. (Ramos Decl. ¶ 1.) Ms. Ramos explains that Moving Defendant does not employ any physicians. (Id. ¶ 3.) Ms. Ramos also states that none of the physicians who treated Plaintiff, including Dr. Ganjianpour, were Moving Defendant's employees. (Id. ¶ 5.)

Next, Moving Defendant preemptively argues that Plaintiff cannot raise an argument for "ostensible agency" for these physicians. Under CIV § 2300, "[a]n agency is ostensible when the principal intentionally, or by want of ordinary care, causes a third person to believe another to be his agent who is not really employed by him." (CIV § 2300.) In order to raise an argument for ostensible agency, a plaintiff must establish two elements: "(1) conduct by the hospital that would cause a reasonable person to believe that the physician was an agent of the hospital, and (2) reliance on that apparent agency relationship by the plaintiff." (*Mejia v. Community Hospital of San Bernadino* (2002) 99 Cal.App.4th 1448, 1453.)

As to this first element, "a hospital is generally deemed to have held itself out as the provider of care, unless it gave the patient contrary notice." (Id. p. 1454 [emphasis added].) As to the second element, "reliance . . . is established when the plaintiff 'looks to' the hospital for services, rather than to an individual physician . . . However, reliance need not be proven by direct testimony . . . In fact, many courts presume reliance, absent evidence that the plaintiff knew or should have known the

physician was not an agent of the hospital.” (Ibid. [emphasis added].) Thus, even though there are two elements, only one factual analysis is required here – namely, whether the patient had reason to know that the treating physicians were not agents of the hospital. (Ibid.)

Moving Defendant asserts that Plaintiff had reason to know that none of the physicians treating him were agents of the hospital because, on October 12, 2022, Plaintiff signed a Conditions of Admission form which stated that, “PHYSICIANS ARE INDEPENDENT CONTRACTORS: The undersigned recognizes that all physicians, physician assistants, and surgeons furnishing service to the patient, including the radiologist, pathologist, anesthesiologist, emergency room physician, physician assistants, and the like, are independent contractors and are not employees or agents of the hospital.” (Sep. Statement, Issue 3, ¶¶ 4, 5; see also, Exhibit List, Ex. JJ, p. 4.) This form was purportedly signed by Plaintiff on October 12, 2022. (Exhibit List, Ex. JJ, p. 6.)

Under California case law, clear and unequivocal Conditions of Admission language like this can establish that a patient had reason to know that their physicians were not agents of the hospital. (Wicks v. Antelope Valley Healthcare Dist. (2020) 49 Cal.App.5th 866, 883.) However, the patient must be able to understand and act on the information provided. (Wicks, supra, 884 [distinguishing Whitlow v. Rideout Memorial Hospital (2015) 237 Cal.App.4th 631, where a patient who signed a similar form was vomiting and in intense pain].) Here, Moving Defendant asserts that the language of the Conditions of Admission form is clear, and that Plaintiff was not incapacitated when he signed the form. Moving Defendant bases this assertion on the declaration of Sonia Ramos, who states that, “[o]n October 12, 2022, Mr. Sanchez signed the Conditions of Admission form, which acknowledged that he reviewed the form, and he was offered the opportunity to ask any questions.” (Ramos Decl. ¶ 6.)

Based on this evidence, the Court finds that Moving Defendant has met their initial burden to negate Plaintiff’s claim of medical negligence, as the evidence presented suggests that Plaintiff was given notice that his treating physicians were not agents of Moving Defendant. This means that Plaintiff’s ostensible agency theory fails.

ii) Plaintiff’s Shifted Burden

The burden now shifts to Plaintiff to establish a triable issue of fact as to the issue of ostensible agency. In his Opposition, Plaintiff argues that: 1) the evidence of the signed Conditions of Admission form is inadmissible, as it was not properly authenticated; and 2) even if it were admissible, there is a dispute of fact as to whether he was incapacitated when he signed the form. (Opp. pp. 2:24-3:12.)

a) Admissibility of the Ramos Declaration

First, Plaintiff raises the issue of admissibility. Moving Defendant’s evidence that Plaintiff signed the Conditions of Admission form comes from the declaration of Sonia Ramos, an employee of Moving Defendant. Ms. Ramos states that, “[o]n October 12, 2022, Mr. Sanchez signed the Conditions of Admission form, which acknowledged that he reviewed the form, and he was offered the opportunity to ask any questions.” (Ramos Decl. ¶ 6.) Ms. Ramos asserted to have, “personal knowledge of all facts contained within this Declaration.” (Id. ¶ 2.)

Plaintiff argues that Ms. Ramos lacks the foundation to make these assertions. In support of this argument Plaintiff provides excerpts from the deposition transcript of Ms. Ramos. There, Ms. Ramos states that she was not physically present in the ER on the night that Plaintiff was admitted. (Opp. Compendium of Evidence, Ex. C, p. 28:20-24.) She also states that she does not personally know whether Plaintiff was presented with, or read, the Conditions of Admission form she authenticated. (Id. p. 29:3-22; see also, Id. p. 29:8-11 [“Q: Okay. And your statement that the form was presented before any services was rendered is not based on anything you personally observed, right? A: Correct”].) Based on these deposition statements, it appears as though Ms. Ramos lacks the foundation to state how Plaintiff was presented with these documents when he was admitted to the ER, and that he was given an opportunity to ask questions about the form. Thus, this evidence is arguably inadmissible.

In their Reply, Moving Defendant asserts that this foundation argument, “conflates Ms. Ramos’ lack of personal recollection of Mr. Sanchez’s individual admission with the distinct question whether an electronically maintained hospital admission record may be authenticated through appropriate testimony concerning the hospital’s recordkeeping and admission practices.” (Reply, p. 9:8-11.) Moving Defendant also argues that Plaintiff is mistaken when he asserts that, because Ms. Ramos did not personally observe Plaintiff’s intake, she cannot testify to the fact that physicians are not typically employees of the hospital. (Id. p. 9:2-7.)

The Court agrees for the most part. Ms. Ramos, in her role as Moving Defendant’s Senior Manager for Medical Staff Services, has the foundation to state that, as a general rule, the physicians working for Moving Defendant are independent contractors. She also has the ability to authenticate electronically stored documents like the signed form presented here. However, she does not have the foundation to rebut the elements of an ostensible agency claim. The primary dispute in this motion is whether 1) Plaintiff was presented with clear notice that his physicians were not agents of the hospital, and 2) whether Plaintiff was able to understand the information provided. Given that Ms. Ramos was not present when Plaintiff first signed these forms, she could, at most, testify as to the date of the electronic signature on this form. She cannot, however, testify as to the circumstances of the signature. Thus, her statement that Plaintiff, “was offered the opportunity to ask any questions” cannot be used to establish that Plaintiff was capable of understanding the implications of this agreement. (Ramos Decl. ¶ 6.)

Thus, the Court agrees that Moving Defendant has failed to present admissible evidence showing that Plaintiff understood the information provided, as required under Wicks.

b) Dispute of Fact as to Plaintiff’s Incapacitation

Setting aside the issue of admissibility, Plaintiff also raises a dispute of material fact as to whether they were able to understand the Conditions of Admission language presented to them on October 12, 2022.

Under California case law, clear and unequivocal Conditions of Admission language like this can establish that a patient had reason to know that their physicians were not agents of the hospital. (Wicks v. Antelope Valley Healthcare Dist.(2020) 49 Cal.App.5th 866, 883.) However, the patient must be able to understand and act on the information provided. (Wicks, supra, p. 884.)

Here, Plaintiff provides multiple pieces of evidence that suggest he was unable to understand the information presented to him in the Conditions of Admission form. First, Plaintiff points to Exhibit E of Moving Defendant’s motion – a summary of his patient notes. There, it states that Plaintiff, “was given fentanyl in route and states he has no relief with that.” (Exhibit List, Ex. E, p. 152.) Additionally, Plaintiff points out that, shortly after he was admitted, he was administered 100 milligrams of ketamine. (Kvamme Depo. 36: 19-23; see also, Compendium of Evidence, Ex. E, p. 172.) Given the strong dose of pain meds Plaintiff was administered, it is possible that at the time he signed the Conditions of Admission form, he could not understand them, or even remember signing them. This argument is reinforced by Plaintiff’s own deposition testimony, where he was shown a copy of the Conditions of Admission form. Plaintiff stated on the record that he never received this document, did not sign it, and did not recognize the signature. (Opp. Ex. 2. pp. 96:17-97:7.) Taken together, these facts raise a dispute of material fact as to Plaintiff’s ability to understand the terms of the Conditions of Admission form. Thus, per Wicks, Moving Defendant cannot defeat Plaintiff’s claim of ostensible agency at the summary judgment stage.

In their Reply, Moving Defendant argues that this dispute as to the signing of the first form does not defeat their argument, because Moving Defendant signed more than a dozen other Consent for Surgery forms while admitted, all of which also contained similar “not agents” language. (Reply, p. 8:9-18.) As evidence of these forms, Moving Defendant submits the declaration of William Sulentor, who verifies and attaches multiple consent forms signed by Plaintiff, all of which include language clarifying that the physicians treating him are not Moving Defendant’s agents. (See generally, Sulentor Decl. Ex. A.)

Normally, this would be very compelling evidence that Plaintiff had notice of his physicians’ relationship to Moving Defendant. However, this evidence was improperly brought via a Reply. Under CCP § 437c(b)(4), “[a] reply to the opposition [for a motion for summary judgment] shall be served and filed by the moving party not less than 11 days preceding the noticed or

continued date of hearing, unless the court for good cause orders otherwise. The reply shall not include any new evidentiary matter, additional material facts, or separate statement submitted with the reply and not presented in the moving papers or opposing papers." (CCP § 437c(b)(4) [emphasis added].) Moving Defendant's initial motion did not provide these consent forms as evidence. (See generally, MSJ; see also, Exhibit List.) In fact, Moving Defendant's separate statement only discussed the initial October 12, 2022, Conditions of Admission form. (Sep. Statement, Issue 3, ¶¶ 4-5.) Thus, this form is the only one that Moving Defendant has put forth as necessary to negate Plaintiff's claim.

When a moving party includes a "fact" in the separate statement, the moving party concedes that fact's materiality. (See, *Nazir v. United Airlines, Inc.* (2009) 178 Cal.App.4th 243, 252.) Thus, Moving Defendant has conceded that the validity of the initial Conditions of Admission form is material to the dispute in this case. Moreover, Moving Defendant cannot introduce new evidence of other relevant documents at this late stage to defeat Plaintiff's argument. Thus, Moving Defendant's argument fails.

iii) Summary

In summary, Moving Defendant met their initial burden to rebut Plaintiff's ostensible agency argument by establishing that they provided Plaintiff with actual notice of the fact that his physicians were not agents of Moving Defendant. Plaintiff then met their shifted burden by disputing the material facts raised by Moving Defendant, thereby undermining the validity of that notice. Thus, there is a triable issue of material fact as to Plaintiff's ostensible agency argument.

For these reasons, the Court DENIES Moving Defendant's Motion for Summary Judgment.

Conclusion

The Court DENIES Moving Defendant's Motion for Summary Judgment.

IT IS SO ORDERED, Plaintiff TO GIVE NOTICE.

September 9, 2026

____Anthony J. Mohr____

Judge of the Superior Court